

# Docuplete Affiliate Program Agreement

West Hills Capital · [westhillscapital.com](https://westhillscapital.com) · [affiliates@westhillscapital.com](mailto:affiliates@westhillscapital.com)

Effective upon electronic acceptance by the Affiliate. Last updated: May 2026.

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This Affiliate Program Agreement ("Agreement") is entered into between West Hills Capital, LLC ("Company," "we," or "us"), the operator of the Docuplete document-automation platform, and the individual or entity that accepts this Agreement electronically ("Affiliate," "you," or "your").

By checking the acceptance box on the Docuplete affiliate application form, you agree to be bound by all terms of this Agreement. If you are accepting on behalf of a company or other legal entity, you represent that you have the authority to bind that entity.

## 1. DEFINITIONS

**"Qualified Referral"** means a new customer who (a) has not previously registered for a Docuplete account, (b) signs up through the Affiliate's unique referral link or using the Affiliate's referral code, (c) completes a paid subscription (excluding trial periods), and (d) makes at least one successful billed payment.

**"Commission Period"** means the 12 consecutive calendar months immediately following a Qualified Referral's first successful billed payment.

**"Net Revenue"** means the monthly subscription fees actually collected from a Qualified Referral, excluding taxes, chargebacks, refunds, and platform or payment-processing fees.

**"Referral Link"** means the unique URL or promo code assigned to the Affiliate by the Company.

**"Stripe Connect Account"** means the Affiliate's connected payout account established through Stripe, Inc., required to receive commission payments.

## 2. PROGRAM ENROLLMENT

Upon approval of your application, the Company will: (a) issue you a unique Referral Link and referral code; (b) send you a Stripe Connect onboarding link to set up your payout account; and (c) grant you access to your affiliate dashboard showing referred accounts, commission status, and payout history.

Enrollment is subject to the Company's sole discretion and may be denied or revoked at any time for any reason, including conduct inconsistent with the Company's brand or values.

## 3. COMMISSION STRUCTURE

Subject to the terms of this Agreement, the Company will pay the Affiliate a commission as follows:

- Rate: 20% of Net Revenue generated by each Qualified Referral.
- Duration: Commissions are earned for the Commission Period (12 months) per Qualified Referral.
- Calculation: Commissions are calculated on the monthly billing date of each Qualified Referral and accumulate until the payout date.
- No recurring obligation: After the 12-month Commission Period expires for a given referral, no further commissions are owed on that referral's subscription, even if the customer remains active.

Custom commission rates or extended terms may be agreed upon in a separate written addendum signed by both parties. In the absence of such an addendum, the terms above govern.

#### **4. PAYMENT**

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- Commissions are paid monthly, within 15 business days following the end of each calendar month in which they were earned.
- Payment is made exclusively via Stripe Connect to the Affiliate's verified payout account. The Affiliate is responsible for completing Stripe onboarding and maintaining a valid payout method.
- Commissions below \$25 in a given month will roll over to the following month until the accumulated balance meets the \$25 minimum.
- The Company reserves the right to withhold payment for commissions under dispute, reversal, or fraud investigation.
- The Affiliate is solely responsible for all taxes, duties, and withholdings applicable to commission payments in their jurisdiction.

#### **5. AFFILIATE OBLIGATIONS**

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The Affiliate agrees to:

- Promote Docuplete only through lawful, truthful, and non-deceptive means.
- Not misrepresent Docuplete's features, pricing, or capabilities.
- Disclose the affiliate relationship clearly and conspicuously in any promotional content, in compliance with applicable law (including FTC guidelines).
- Not engage in paid search advertising on branded terms ("Docuplete," "West Hills Capital," or confusingly similar terms) without prior written consent.
- Not send unsolicited bulk email (spam) using the Referral Link.
- Keep referral codes and Referral Links confidential and not share them in a manner intended to generate illegitimate signups.
- Promptly notify the Company of any errors, misrepresentations, or suspected abuse of the Referral Link.

#### **6. PROHIBITED CONDUCT**

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The following activities are grounds for immediate termination of this Agreement and forfeiture of any unpaid commissions:

- Self-referral: signing up for a Docuplete account using your own Referral Link.
- Incentivized signups: offering third parties cash, rebates, or other compensation in exchange for using the Referral Link, unless pre-approved in writing.
- Cookie stuffing or click fraud.
- Trademark infringement or brand impersonation.
- Any conduct that violates applicable law or regulation.

#### **7. INTELLECTUAL PROPERTY**

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The Company grants the Affiliate a limited, non-exclusive, non-transferable, revocable license to use the Docuplete name, logo, and approved marketing materials solely for the purpose of promoting the

Docuplete platform under this Agreement.

The Affiliate may not modify the Company's trademarks, create derivative works, or use them in any manner that implies endorsement of the Affiliate's own products or services beyond referral promotion. All goodwill arising from use of the Company's trademarks inures to the Company.

## **8. CONFIDENTIALITY**

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"Confidential Information" means any non-public information disclosed by the Company to the Affiliate, including commission rates, business terms, customer data, and technical information. The Affiliate will not disclose Confidential Information to any third party without prior written consent and will use it only for the purpose of performing under this Agreement. This obligation survives termination for three (3) years.

## **9. TERM AND TERMINATION**

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- This Agreement begins on the date of electronic acceptance and continues until terminated.
- Either party may terminate this Agreement for any reason with 14 days' written notice (email to affiliates@westhillscapital.com is sufficient).
- The Company may terminate immediately upon breach of Sections 5 or 6.
- Upon termination, the Affiliate will cease all use of the Referral Link and Company trademarks.
- Commissions earned prior to the effective termination date will be paid in the normal course, except where forfeited under Section 6. Commissions for the 12-month Commission Period continue for referrals already made prior to termination.

## **10. DISCLAIMER OF WARRANTIES**

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THE COMPANY PROVIDES THE AFFILIATE PROGRAM "AS IS" WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED. THE COMPANY DOES NOT WARRANT THAT THE PLATFORM WILL BE ERROR-FREE OR UNINTERRUPTED, THAT REFERRAL LINKS WILL FUNCTION AT ALL TIMES, OR THAT ANY SPECIFIC COMMISSION LEVELS WILL BE ACHIEVABLE. THE AFFILIATE BEARS ALL RISK RELATING TO PROMOTIONAL ACTIVITIES.

## **11. LIMITATION OF LIABILITY**

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TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE COMPANY'S TOTAL LIABILITY TO THE AFFILIATE UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL COMMISSIONS PAID TO THE AFFILIATE IN THE THREE MONTHS PRECEDING THE CLAIM. IN NO EVENT WILL THE COMPANY BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES.

## **12. INDEPENDENT CONTRACTOR**

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The Affiliate is an independent contractor. Nothing in this Agreement creates an employment, partnership, joint venture, or agency relationship between the parties. The Affiliate has no authority to bind the Company to any obligation.

## **13. MODIFICATIONS TO THIS AGREEMENT**

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The Company may update this Agreement at any time by posting a revised version and notifying the Affiliate by email. Continued participation in the affiliate program after the notice period (14 days) constitutes acceptance of the revised terms. If the Affiliate does not accept the revised terms, they must terminate this Agreement before the notice period expires.

#### 14. GOVERNING LAW; DISPUTE RESOLUTION

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This Agreement is governed by the laws of the State of California, without regard to conflict-of-law principles. Any dispute arising under or relating to this Agreement shall first be subject to good-faith negotiation between the parties. If unresolved within 30 days, disputes shall be submitted to binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules, conducted in Los Angeles County, California. Judgment on the award may be entered in any court of competent jurisdiction.

#### 15. GENERAL PROVISIONS

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- Entire Agreement: This Agreement constitutes the entire agreement between the parties regarding the affiliate program and supersedes all prior discussions.
- Severability: If any provision is found unenforceable, the remaining provisions continue in effect.
- Waiver: Failure to enforce any provision is not a waiver of the right to enforce it later.
- Assignment: The Affiliate may not assign this Agreement without prior written consent. The Company may assign it in connection with a merger, acquisition, or sale of substantially all assets.
- Notices: Legal notices to the Company should be sent to: West Hills Capital, LLC, affiliates@westhillscapital.com.

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#### Acceptance

This Agreement is accepted electronically. By checking the acceptance box on the affiliate application form, you confirm that you have read, understood, and agree to be bound by all terms of this Agreement. The date of acceptance and your IP address are recorded and constitute your electronic signature.

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Affiliate — Name

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West Hills Capital, LLC

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Date of Acceptance (auto-recorded)

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Authorized Signatory

